

Court No. - 40

Case :- WRIT - C No. - 24417 of 2023

Petitioner :- Hemant Jaiswal

Respondent :- Director U.P. Power Corporation Lucknow And 2 Others

Counsel for Petitioner :- Rakesh Narain Shukla, Aditya Narayan Shukla

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. Heard learned counsel for the petitioner and Sri Rajesh Kumar, learned counsel holding brief of Sri Narendra Kumar Tiwari, learned counsel counsel for respondent Nos. 2 and 3.
2. The present writ petition has been preferred with a prayer to command the respondent No.2 to charge the electricity bill to the petitioner in accordance with the load of 2 KW instead of 3 KW and provide one time settlement facility to the petitioner to settle electricity bill Rs.10,72,166.50, after adjusting the amount which was already paid in the form of electricity bill by the petitioner.
3. Learned counsel for the petitioner vehemently submits that petitioner was initially accorded electricity connection with 2 KW. It is submitted that without taking recourse of the U.P. Electricity Supply Code 2005, in arbitrary manner, the same has been enhanced upto 3 KW and accordingly, the demand was raised that so without any opportunity of hearing and as such, the impugned bill is unsustainable and the same is also hit by principles of natural justice.
4. Shri N.K. Tiwari, learned counsel for Electricity Department submits that the matter pertains to electricity bills and adequate provision is provided under Clause 6.5 of the Code 2005. In case, the petitioner moves an appropriate application/objection to the concerned Executive Engineer, Purvanchal Vidyut Vitaran Nigam Ltd., Prayagraj, definitely the same would be considered as per law.
5. Considering the facts and circumstances, no useful purpose would be served in keeping the writ petition pending

consideration. We ***dispose of*** the writ petition asking the petitioner to move an appropriate application/objection under Clause 6.5 of the Electricity Supply Code, 2005 within two weeks from today. In case any such application/objection is moved by the petitioner, we hope and trust that the same shall be considered and decided by the Competent Authority in accordance with law expeditiously, strictly in accordance with law.

Order Date :- 26.7.2023

Rakesh